

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL BRECK LONG II,

Petitioner

VS.

CHOI SAN WONG,

Respondent

) Case Number: FDI-18-789439

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Michael Breck Long II (Father) and Respondent Choi San Wong (Mother) have one minor child, Corban (DOB: 11/11/2010, age 15). The parties married on 4/24/2010 and separated on 7/1/2015, for a marriage of 5 years and 2 months.
- 2) On 4/5/2019, a Dissolution Judgment was entered. The Judgment provides in relevant part that Mother will pay 100% of the cost of all extracurricular activities, childcare, lessons, school supplies, camps, and sports.
- 3) On 12/10/2020, a Stipulation to Establish or Modify Child Support and Order was entered which provides in relevant part that Father will pay Mother \$1,747 per month in guideline child support; the parties will share equally uninsured healthcare expenses for the child; and “all other child support provisions in the Judgment entered April 3, 2019 remain in full force and effect.”
- 4) Now on for hearing is Father’s Request for Order filed 1/28/2026 asking the Court to modify the current child support order because Father was laid off on 12/5/2025 and because Father is now

1 the “primary financial supporter of two additional dependent children born after the existing order
2 who reside with me full time.”

- 3 5) On 1/28/2026, Father filed an Income and Expense Declaration wherein Father states he is
4 unemployed and is receiving unemployment compensation.
- 5 6) At the prior 4/10/2026 hearing, neither party appeared. The Court adopted its Tentative Ruling
6 which continued the hearing to 6/18/2026 because there was no Proof of Service on file for
7 Father’s 1/28/2026 Request for Order. Father was ordered to file an updated Income and Expense
8 Declaration no later than 5/15/2026. Father was also ordered to serve the following documents on
9 Mother in advance of the 6/18/2026 hearing: (a) Request for Order filed 1/28/2026, (b) Income
10 and Expense Declaration filed 1/28/2026, (c) Father’s updated Income and Expense Declaration,
11 (d) blank Responsive Declaration, (e) blank Income and Expense Declaration, Tentative Ruling
12 Instructions, and (f) Findings and Order After Hearing for the 4/10/2026 hearing date.
- 13 7) On 4/29/2026, the Court prepared and filed the Findings and Order After Hearing memorializing
14 the orders for the 4/10/2026 hearing date. The Court mailed the Findings and Order After Hearing
15 to Father that same day. The Court not mail the Findings and Order After Hearing to Mother
16 because there is no address on file for Mother.
- 17 8) On 5/14/2026, Father filed an updated Income and Expense Declaration wherein Father states he
18 remains unemployed and is receiving unemployment compensation.
- 19 9) On 5/14/2026, Father filed a Proof of Service which indicates that Mother was personally served
20 with the following documents on 3/21/2026: (a) Request for Order, (b) Income and Expense
21 Declaration (no file date provided), (c) Blank Responsive Declaration, (d) Blank Income and
22 Expense Declaration, and (e) Notice of Remote Appearance.
- 23 10) At the prior 6/18/2026 hearing, neither party appeared. The Court adopted its Tentative Ruling
24 which continued the hearing “a second and final time” to 8/20/2026 because there was no
25 evidence in the record that Mother had been served with a copy of the Findings and Order After
26 Hearing for the 4/10/2026 hearing date. The Court ordered Father to file and serve an updated
27 Income and Expense Declaration no later than 7/20/2026 and to serve and file Proof of Service
28 indicating service of: (a) Father’s Updated Income and Expense Declaration, (b) Findings and
29

Order After Hearing for the 4/10/2026 hearing date, (c) Findings and Order After Hearing for the 6/18/2026 hearing date, and (d) Tentative Ruling Instructions.

11) On 6/29/2026, the Court prepared and filed the Findings and Order After Hearing memorializing the orders for the 6/18/2026 hearing date. The Court mailed the Findings and Order After Hearing to Father that same day. The Court not mail the Findings and Order After Hearing to Mother because there is no address on file for Mother.

12) Father has filed no pleadings since he filed the 5/14/2026 Proof of Service.

13) To date, no pleadings have been filed by Mother regarding Father's 1/28/2026.

B. Findings and Order

- 1) Father has not complied with prior orders requiring him to serve the Findings and Orders After Hearing for the 4/10/2026 and 6/18/2026 hearing dates or the Tentative Ruling Instructions. Additionally, Father did not file an updated Income and Expense Declaration by 7/20/2026.
- 2) Father's 1/28/2026 Request for Order is denied without prejudice to a new Request for Order.
- 3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TONY TROUSSET,

Petitioner

VS.

ERIN KELLEY,

Respondent

) Case Number: FDI-21-794361

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER RE CHANGE VISITATION
CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Tony Trouset (Father) and Respondent Erin Kelley (Mother) have one minor child, Massimo (DOB 11/5/2010, age 15), and two adult daughters, ages 20 and 18. The parties share joint legal and physical custody of Massimo on a 2-2-5 parenting time schedule during the school year and a week-on, week-off schedule during the summer.
- 2) On for hearing is Father's 4/25/2026 request for a week-on, week-off schedule during the school year starting 8/31/2026, with the exchanges occurring on Mondays at 3pm. He states that Massimo has expressed support for this schedule. Father believes the schedule is age appropriate and would "provide [Massimo] with longer, uninterrupted stretches to manage schoolwork, extracurricular activities, and social commitments." He states the conflict between the parties is high and that his proposed schedule would "significantly reduce the number of transitions between households" and thus, the parties' interactions, which would be a positive change. Father

1 has filed a memorandum of points and authorities in support of his request, which the Court has
2 reviewed and considered.

3 3) Mother has filed a response and supplemental declaration stating she does “not oppose a week-
4 on/week-off schedule categorically” but if the Court were to order it, the exchanges should take
5 place on Sundays at 8pm, she should have the first week starting 8/30/2026, the school break and
6 holiday schedules should be reworked, and the Court’s 6/25/2025 order relating to summer breaks
7 should remain in place. Mother states that Massimo has stated he prefers the 2-2-5 schedule
8 during the school year, that Father has been pushing for the week-on, week-off schedule, and that
9 he does not wish to speak to Family Court Services (FCS) or be placed in the middle of this
10 conflict. Mother states the 2-2-5 schedule has been working and should not be changed when
11 Massimo is adjusting to being the only child remaining in the home after his middle sister’s
12 departure to attend college. Mother asks for a Tier II interview of Massimo before changes are
13 made.

14 4) On 7/7/2026, Father filed a supplemental declaration in which he requests an order requiring the
15 parties to prioritize Massimo’s volleyball tournaments over parenting time including vacations
16 throughout Massimo’s high school years, until he graduates from high school. He states that
17 Mother took Massimo on a summer trip instead of taking him to a volleyball tournament. Mother
18 opposes this request both procedurally and on the merits; she moves to strike Father’s
19 supplemental declaration and seeks sanctions. She states that Father litigated this issue last year,
20 the Court denied his request, and he is attempting to relitigate it without having filed a new
21 request for order. She states she has already taken Massimo to two out-of-state tournaments and
22 paid for them, that Father has paid for none, and that Father knew of the summer tournament
23 dates when he selected his vacation time and let Mother take the vacation time that overlapped
24 with the tournament dates.

25 5) Father filed a reply declaration and a reply memorandum of points and authorities on 8/13/2026,
26 which the Court has reviewed and considered. He states the volleyball issue is fairly encompassed
27 within his original request and that the tournament schedule was out in December 2025 so that
28 Mother’s summer trip cannot be considered “pre-planned travel” (see 6/25/2025 FOAH) that
29

1 takes precedence over the tournament. He asks that the Court deny Mother's request to strike his
2 supplemental declaration and her request for sanctions.

3 **B. Findings and Orders**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.
- 8 2) The Court finds it is in Massimo's best interest to modify the current 2-2-5 schedule to a week-
9 on, week-off schedule beginning Sunday 8/30/2026 at 8pm, with Father having the first week and
10 the parties alternating weeks thereafter. All prior orders relating to parenting time during summer
11 and other school breaks and holidays shall remain in place, with the summer, school breaks, and
12 holiday schedules taking precedence over the regular week-on, week-off schedule. The Court has
13 considered the parties' declarations regarding Massimo's wishes and statements and finds that a
14 Tier II interview is not warranted at this time.
- 15 3) The Court has reviewed and considered the parties' positions regarding Father's request for
16 volleyball tournaments to be prioritized over parenting time including travel. Mother's motion to
17 strike the supplemental declaration and request for sanctions are denied. Father's request as it
18 relates to Mother's summer trip, which has already taken place, is moot. Going forward, the
19 parties shall continue following this Court's 6/25/2025 order relating to Massimo's
20 extracurriculars and parenting time / pre-planned travel, which remains in full force and effect
21 without modification.
- 22 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HEATHER RENEE ALBURGER,

Petitioner

VS.

JOHN FRANCIS ALBURGER,

Respondent

) Case Number: FDI-21-795413

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF MOTION (FAMILY LAW GENERIC) CHANGE OF
VISITATION (PARENTING TIME), SUPERVISED VISITATION/MODIFICATION OF 11/1/24

TENTATIVE RULING

The parties are ordered to appear in Dept. 404 at 9 AM on 8/20/2026 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JACQUELINE MARGUERITE R B PALLAS,	)	Case Number: FDI-22-797295
Petitioner	)	Hearing Date: August 20, 2026
VS.	)	Hearing Time: 9:00 AM
DERRICK LYNDON PALLAS,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, IN THE
ALTERNATIVE, EMERGENCY ORDER ADOPTING PARENTING COORDINATOR'S
RECOMMENDATION OR ORDER SHORTENING TIME FOR HEARING ON THE ISSUE

TENTATIVE RULING

The parties are ordered to appear in Dept. 404 at 10 AM on 8/20/2026 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CLAY MONTGOMERY,

Petitioner

VS.

CAITLIN MONTGOMERY,

Respondent

) Case Number: FDI-24-799969

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

- REVIEW OF CUSTODY AND VISITATION

TENTATIVE RULING

This matter is continued to 8/27/2026. The Court intends to order appearances in this matter on 8/27/2026. The parties are ordered to check the Court's tentative ruling on 8/26/2026 at 2PM.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALEV INAM YILDIZ,

Petitioner

VS.

VEDAT TAYLAN YILDIZ,

Respondent

) Case Number: FDI-26-802879

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE QUASH SERVICE OF SUMMONS, DISMISS ENTIRE ACTION AND
SANCTIONS

TENTATIVE RULING

The parties are ordered to appear in Dept. 404 at 9 AM on 8/20/2026 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Wife shall be prepared to explain what information she intends to request from Husband or other entities through discovery which she believes is likely to lead to evidence showing that this Court may exercise jurisdiction over any part of the parties' family law action.

The Court notes that it is unlikely to find that the subpoenas Wife served on Fidelity, Wells Fargo, Charles Schwab, PayPal, Robinhood, and Vanguard (seeking information concerning the existence, ownership, balance activity, and disposition of accounts held at those institutions) are reasonably likely to establish a sufficient jurisdictional nexus between Husband and California, particularly because Wife has not identified how the requested account information would establish a jurisdictionally significant contact with California.

The Court would also like to hear argument from the parties regarding what impact, if any, the Turkish Court's 8/6/2026 order has on Husband's motion to quash, particularly the Turkish

1 Court's denial of Wife's request to impose precautionary measures on bank accounts in the United
2 States.

3 Wife shall also be prepared to explain the basis for her statement that "the Turkish Court has
4 refused to exercise jurisdiction over the financial accounts the Parties have in the United States," as
5 the Court does not see evidence supporting that assertion in the copy of the 8/6/2026 order attached
6 to Wife's 8/17/2026 declaration.

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8 **A. Procedural History**

9 1) According to the Petition for Legal Separation filed 4/21/2026, Petitioner Alev Inam Yildiz
10 (Wife) and Respondent Vedat Taylan Yildiz (Husband) married on 11/3/2014 and separated on
11 3/30/2026, for a marriage of 11 years and 5 months. The parties have one minor child, Arya
12 (DOB: 8/1/2023). In the Petition, Wife did not check any of the boxes under the "Residence
13 Requirements" section. Wife states the child resides in Turkey and "requests that any child
14 custody or visitation issues be reserved for the courts in Turkey."

15 2) Wife is represented by attorneys Douglas Dal Cielo and Brian Affrunti. Husband is represented
16 by attorney Robert Menache.

17 3) Husband's Motion to Quash

18 a. On 6/8/2026, Husband filed a Request for Order and Memorandum of Points and
19 Authorities, asking the Court to quash service of Summons, dismiss this case in its
20 entirety, and award Husband attorney's fees for bringing his motion. Husband states that
21 neither of the parties are domiciled in California, the marital domicile is in Turkey, and
22 the parties' child has never resided in California. Husband states that he was a student in
23 the United States between 2001 and 2007, where he studied first at the University of
24 Massachusetts and then at Stanford University. Husband states he worked at Google
25 between 2007 and 2018, during which time he became a naturalized citizen in 2014. On
26 11/3/2014, Husband married Wife in San Francisco. In 2020, Wife became a naturalized
27 citizen. In September 2017, the parties relocated to Turkey where they resided ever since,
28 except for a brief relocation to New York between November 2019 to February 2020 for
29 a work assignment. Husband also states that during their marriage the parties filed federal

1 taxes as expatriates and did not file California state taxes. Husband states that on
2 4/10/2026, Wife took Arya and traveled to California for a period of “approximately ten
3 days” (without Husband’s authorization) and filed the Petition for legal separation on
4 4/21/2026. Husband states that Wife may have departed California on 4/20/2026,
5 suggesting that the Petition may have been filed while Wife was not physically present in
6 California or was in transit out of the state. Husband states that Wife’s removal of the
7 child from California may have violated the standard family law restraining order which
8 prohibits removal of a minor child from California following the filing of a family law
9 Petition. On 5/11/2026, Wife then filed for divorce in Turkey. Husband states that
10 California lacks both personal jurisdiction over him and subject matter jurisdiction over
11 this divorce and custody action, and even if minimum contacts existed, the exercise of
12 jurisdiction would be unreasonable given the substantial burden on Husband. Husband
13 argues that his contacts with the state of California are not continuous or systemic, and so
14 the Court lacks general personal jurisdiction over him. Husband also argues that the
15 nexus between himself, California, and the litigation are insufficient to give rise to
16 specific personal jurisdiction. Husband argues he did not purposefully avail himself of
17 California forum benefits, the controversy does not arise out of Husband’s prior contacts
18 with California, and the exercise of jurisdiction fails the fair play and substantial justice
19 test. Husband argues, “The evidence and witnesses relevant to custody, support, and
20 property division are located in Turkey. Turkish courts are far better positioned to
21 adjudicate the parties' rights and obligations and to protect the interests of the child.”
22 Husband argues that neither party is domiciled in California, which means that California
23 lacks subject matter jurisdiction to grant a valid divorce. Husband also argues that
24 California is not the child’s home state, which means that California lacks jurisdiction
25 under the UCCJEA to make custody orders. Husband further argues that there is no
26 emergency which warrants an emergency custody order under Family Code section 3424.
27 Finally, Husband argues that California should decline jurisdiction as an inconvenient
28 forum under Family Code section 3427.
29

b. On 8/7/2026, Wife filed a Responsive Declaration and Memorandum of Points and Authorities asking the Court to deny Husband's 6/8/2026 Request for Order. Wife states that she filed her Petition for Legal Separation in California "for the sole purpose of preventing the dissipation of assets held and maintained by Husband in California in order to protect the marital estate pending divorce proceedings in Turkey." Wife argues, "There is nothing inconsistent with her filing for legal separation in California to protect the California based assets while pursuing a marriage dissolution in Turkey. It bears emphasis that the vast majority of their marital assets are held in California, and the Petition was filed to protect those assets in response to the threat made by Husband" (that he would leave Wife penniless should she file for divorce in Turkey). Wife argues, "Husband and Wife were married in California and built much of their life and wealth while living in California. Since relocating to Turkey, Husband has maintained the bulk of their marital assets in California and formed at least three businesses [Verilinux, Coronis Consulting, and LayerTen] that are based in California. In so doing, he has purposefully availed himself of the benefits and protections afforded by the State of California...For the reasons set forth herein, Husband is subject to the personal jurisdiction of this Court. Accordingly, Husband's Motion should be denied in its entirety and Husband should be required to file a response to Wife's Petition within a period not to exceed 30 days." Wife also argues, "In the unlikely event this Court grants Husband's Motion, the Court should deny Husband's request for monetary sanctions against wife. Husband has not, and cannot, demonstrate any basis for imposing monetary sanctions against Wife." Wife also states, "On information and belief, once the U.S./California based assets are identified through financial disclosure, those assets will be included in the marital property proceedings in Turkey and divided in accordance with Turkish law. Assuming that occurs, I have no intention to request for this Court to divide our marital property...My understanding of Turkish law is that the division of marital assets is a separate proceeding that will occur only after the divorce is finalized. Thus, it is imperative that my community interests in the California based assets be preserved through that time."

1 c. On 8/14/2026, Husband filed a Reply Declaration. Husband states that he opened
2 accounts with Vanguard, Wells Fargo, Charles Schwab, Fidelity, and Robinhood while
3 he lived and worked in California. Husband states those financial institutions operate
4 nationally and the accounts are not physical assets located in California. Husband states
5 that Verilinx is a Turkish company, not a California business. Husband states “Verilinx
6 has no United States entity, subsidiary, or registration. It has no United States customers
7 and has never generated any revenue. It has no California office, employees, or
8 operations. I perform my role for Verilinx from Istanbul. Petitioner relies on a Verilinx
9 website displaying the address ‘500 Terry Francine Street, San Francisco, CA 94158.’
10 That is not a Verilinx office. The website was created using a Wix template, and that
11 address is the default placeholder address contained in the template. It was inadvertently
12 left on the website and does not represent the location of Verilinx or any Verilinx
13 operation. Verilinx has never maintained an office at that address.” Husband states that
14 Coronis Consulting is a dormant Delaware LLC. Husband also states that “LayerTen has
15 never been incorporated, organized, or registered as a company in California, elsewhere
16 in the United States, or in Turkey. It has no office, employees, customers, or revenue. It is
17 an unlaunched project that I have been exploring and publicizing in anticipation of a
18 possible future venture.” Husband further states that he worked for Firefly, Inc. in March
19 2019 through early 2021 and that he performed the work remotely from Turkey except
20 for a temporary assignment in New York from November 2019 through February 2020.
21 Husband states his employment with Firefly ended in 2021 and he retains only a passive
22 minority ownership interest and has no management or operational role in the company
23 since his employment ended. Husband further states he has appeared in and is
24 participating in the Turkish divorce proceedings.

25 d. On 8/17/2026, Wife filed a Sur-Opposition to Husband’s Motion to Quash. Wife states,
26 “Based on a recent decision issued by the Turkish Court on August 6, 2026, the Turkish
27 Court has declined to exercise jurisdiction over the Parties financial assets based in the
28 United States and has declined to enforce any protective measures over those
29 accounts...Contrary to Respondent’s argument, to this point the Turkish Court does not

1 provide any protection for Petitioner against Respondent's threat to leave Petitioner
2 penniless. This action must be maintained to prevent Respondent from eliminating, or
3 diminishing, the Parties financial assets in the United States while the proceedings in
4 Turkey are ongoing."

- 5 a. On 8/17/2026, Wife's attorney filed a Declaration in Support of Sur-Opposition.
6 Attached to Wife's attorney's declaration is a copy of an order from the Turkish Court
7 which states in part: "16) As issues of warrant cannot be given to banks located in foreign
8 countries, the requests to impose precautionary measures on the banks in USA are
9 rejected. 17) As precautionary measures cannot be carried out on properties located in
10 foreign countries, the related request is rejected. 17) [sic.] Regarding banks located in
11 Türkiye; requests for precautionary measures are to be evaluated after written Responses
12 are received from the relevant Bank Directorates." Wife's attorney argues, "On
13 information and belief, to this point, the Turkish Court has refused to exercise jurisdiction
14 over the financial accounts the Parties have in the United States, and Respondent's claim
15 that this action is unnecessary due to the pending proceedings in Turkey is contradicted
16 by the Turkish Court Order. Thus, it is imperative that this proceeding not be dismissed
17 to ensure that Petitioner's community interest in the accounts held here in the United
18 States are not eliminated, or diminished, while the proceedings in Turkey are ongoing."

19 4) Wife's Request to Reschedule Hearing

- 20 a. On 8/5/2026, Wife filed a Request to Reschedule the 8/20/2026 hearing. Wife's attorney
21 states, "Petitioner opened and/or contributed to various financial accounts maintained in
22 California using community funds. The Petition was directed at preserving those US
23 based assets while Petitioner pursues marital dissolution proceedings in Turkey." Wife's
24 attorney also states that on 7/21/2026, Wife "caused six subpoenas to be issued to
25 multiple financial institutions that Petitioner is aware of that consist entirely of or contain
26 community funds to obtain further evidence concerning Respondent's financial activities
27 and connections to California. The information sought is directly relevant to the
28 jurisdictional issues raised by Respondent's RFO and is reasonably calculated to uncover
29 additional evidence demonstrating Respondent's continuing contacts with

1 California...Accordingly, Petitioner respectfully requests that the Court continue the
2 August 20, 2026 hearing for approximately three months to allow sufficient time to
3 complete this jurisdictional discovery.” Wife’s attorney cites *Hardell v. Vanzyl* (2024)
4 102 Cal.App.5th 960, 970 which states “A plaintiff attempting to assert jurisdiction over
5 a nonresident defendant is entitled to an opportunity to conduct discovery on the
6 jurisdictional facts necessary to sustain its burden of proof” and a continuance is
7 appropriate where the moving party demonstrates that the requested discovery is likely to
8 lead to evidence establishing jurisdiction. Wife’s attorney argues, “Petitioner has issued
9 narrowly tailored subpoenas to financial institutions seeking evidence of Respondent’s
10 continuing financial activities and contacts with California. The documents obtained
11 through the subpoenas will establish when the accounts were opened, including whether
12 they were created while Petitioner and Respondent resided in California. They will also
13 identify when contributions and distributions were made and reflect the accounts' activity
14 both during the time Petitioner and Respondent resided in California and following their
15 relocation to Turkey. This information should provide further evidence to establish
16 subject matter and personal jurisdiction over Respondent. The requested discovery bears
17 directly on the issue of personal jurisdiction, as it will reveal the timing, nature, and
18 location of the parties' financial activities and contacts, and Respondent’s continued
19 contacts with the State of California after relocating to Turkey.”

- 20 b. On 8/5/2026, Husband filed a Memorandum of Points and Authorities in Opposition to
21 Petitioner’s Ex Parte Application to Continue Hearing. Husband argues, “No exigent
22 circumstances existed requiring emergency intervention by the Court. Petitioner's use of
23 ex parte procedures unnecessarily increased litigation costs and burdened both
24 Respondent and the Court.” Husband also argues, “Although California courts possess
25 discretion to permit jurisdictional discovery, that discretion exists only where the
26 requested discovery is reasonably likely to uncover facts establishing jurisdiction.
27 Petitioner has made no such showing. Instead, Petitioner's request is premised entirely
28 upon speculation that Respondent may maintain accounts at various financial
29 institutions... The existence of banking relationships, standing alone, does not establish

purposeful availment or satisfy due process...Petitioner never explains how records showing deposits or withdrawals would transform otherwise insufficient contacts into constitutionally adequate minimum contacts. Accordingly, the requested subpoenas are legally incapable of producing the evidence necessary to defeat Respondent's Motion to Quash." Moreover, "Petitioner has already commenced proceedings in Turkey seeking adjudication of the parties' marital estate, including assets located worldwide...Those proceedings encompass the very financial information Petitioner now seeks through California discovery. This demonstrates that the subpoenas are directed toward locating and investigating Respondent's assets—not establishing personal jurisdiction. Jurisdictional discovery is not a substitute for asset discovery. Nor may a party use a motion to quash as an opportunity to conduct expansive financial discovery in aid of parallel foreign proceedings. The breadth of Petitioner's six subpoenas confirms that they are aimed at Respondent's financial affairs generally rather than any identifiable jurisdictional fact." Husband also requests monetary sanctions for Wife's "unnecessary ex parte application."

- c. On 8/6/2026, Wife filed a Reply arguing she filed a request to reschedule the hearing under California Rules of Court, rule 5.95, and her motion is not an ex parte application under California Rules of Court, rule 3.1202. Wife also argues, "Requiring Petitioner to conclusively establish all jurisdictional facts that the requested discovery is intended to uncover would effectively require Petitioner to prove jurisdiction as a prerequisite to obtaining discovery aimed at establishing jurisdiction."

5) Future Hearing Dates

- a. There is a future hearing date set for 10/29/2026 on Husband's Request for Order filed 8/10/2026 to quash Wife's "Deposition Subpoenas for Production of Business Records directed to Fidelity Brokerage Services, Wells Fargo Bank, N.A., Charles Schwab & Co., Inc., PayPal, Inc., Robinhood Markets, Inc., and The Vanguard Group, Inc., pending the Court's determination of the jurisdictional issues currently before the Court in Respondent's Request for Order set for hearing on August 20, 2026." Husband attached copies of the subpoenas he seeks to quash. The subpoenas seek information related to the

1 existence, ownership, balance activity, and disposition of accounts held at those
2 institutions.

3 **B. Findings and Order**

- 4 1) **The parties are ordered to appear.**
- 5 2) **Wife shall be prepared to explain what information she intends to request from Husband or**
6 **other entities through discovery which she believes is likely to lead to evidence showing that**
7 **this Court may exercise jurisdiction over any part of the parties' family law action.**
- 8 3) **The Court notes that it is unlikely to find that the subpoenas Wife served on Fidelity, Wells**
9 **Fargo, Charles Schwab, PayPal, Robinhood, and Vanguard (seeking information**
10 **concerning the existence, ownership, balance activity, and disposition of accounts held at**
11 **those institutions) are reasonably likely to establish a sufficient jurisdictional nexus between**
12 **Husband and California, particularly because Wife has not identified how the requested**
13 **account information would establish a jurisdictionally significant contact with California.**
- 14 4) **The Court would also like to hear argument from the parties regarding what impact, if any,**
15 **the Turkish Court's 8/6/2026 order has on Husband's motion to quash, particularly the**
16 **Turkish Court's denial of Wife's request to impose precautionary measures on bank**
17 **accounts in the United States.**
- 18 5) **Wife shall also be prepared to explain the basis for her statement that "the Turkish Court**
19 **has refused to exercise jurisdiction over the financial accounts the Parties have in the**
20 **United States," as the Court does not see evidence supporting that assertion in the copy of**
21 **the 8/6/2026 order attached to Wife's 8/17/2026 declaration.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,

Petitioner

VS.

JUAN CARLOS MENENDEZ FUNES,

Respondent

) Case Number: FDV-23-816763

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yesenia Moz Castro (Mother) and Respondent Juan Carlos Menendez Funes (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5). On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother, with one hour of weekly parenting time for Father, supervised by the maternal grandmother. The Court ordered that the grandmother may cancel the visit if she is not available or if she believes Father is not sober.
- 2) On 2/11/2026, Father filed a request for parenting time every Saturday from 1PM to 5PM. He stated he did not see Valerie after 2024 because Mother did not let him see her. He stated that Mother recently asked him if he would agree to have her current husband adopt Valerie.
- 3) Mother filed a response denying she did not let Father see Valerie. She stated that despite her offers, Father saw Valerie only 3 or 4 times over the years, spent only 10 to 30 minutes with her each time, had not seen her since 2/24/2024, and had not called her on her birthday or other special occasions. Mother stated she also assumed the parental role for Father's other

daughter Victoria for some time because Father was unable to care for her, had multiple DVROs against him, and had lost custody of a son.

- 4) At a 4/30/2026 hearing on Father's request, the Court ordered that Father shall have visits every Saturday from 6:30PM to 7:30PM, supervised by the maternal grandmother. On 4/30/2026 (the same day as the hearing), Mother filed a new request to suspend visits, reiterating many of the same points she made in her original request. Mother's 4/30/2026 request and a review of the 4/30/2026 order were set for hearing on 8/20/2026.
- 5) Father filed an update declaration on 7/9/2026 stating the visits are going well and he wishes to continue seeing Valerie. He attached a May 2026 certificate for completion of a parenting class from Kids' Turn.
- 6) The parties attended mediation on 7/15/2026 and were unable to reach an agreement. Mother stated she wishes to suspend visits; Father stated he wishes to have additional time with Valerie and a FaceTime call with her once a week.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court finds it is in Valerie's best interest to maintain the current order for sole legal and physical custody to Mother and for Father to have one, 2-hour visit with Valerie every Saturday, from 5:30PM to 7:30PM, to be supervised by the maternal grandmother. In addition, Father may initiate a FaceTime call to Valerie once per week (Mother shall provide Father with a phone number or email address where Valerie can be reached on a phone or iPad or similar device), on Wednesday at 7PM. Given Valerie's young age, the Video call is expected to last about 5 or 10 minutes but may be longer if the parties agree.
- 3) All communication between the parties shall be respectful and peaceful, and only about Valerie.
- 4) All other orders not in conflict with these orders shall remain in full force and effect.
- 5) The Court will prepare the Findings and Order After Hearing.